
Structural Enlargement at Lyons Cement Facility

Bart Lorang <lorangb@gmail.com>

Tue, Nov 28, 2023 at 3:46 PM

To: "Case, Dale" <dcase@bouldercounty.gov>, mlaws@bouldercounty.org

Cc: Sarah Lorang <lorang.sarah@gmail.com>

Good afternoon Dale & Martin,

I hope you had a very nice Thanksgiving weekend.

As 2023 soon comes to a close, I am writing on behalf of Good Neighbors of Lyons and thousands of nearby residents to inquire about the status of [ZON-23-0003](#), as the latest update on the BoCo portal is from late September. I know you are both very busy, but could you please provide an update that we could relay to the residents of Lyons?

Hundreds of nearby Lyons residents are extremely vocal and angry given the dangerous road conditions: trucks run around the clock, clog the highways, leave dust and debris everywhere, and the activity represents an obvious public nuisance and health hazard. In addition, as of late, the decibel levels of the plant have increased dramatically, particularly when the night shift crew is operating. The din can be heard by many in the Town of Lyons (over 1 mile away!) which prevents many residents from quietly enjoying use of their own property.

As a reminder, to recap and summarize the major known facts:

1. \$10M+ expansion project conducted in late 1990s without any Boulder County building permits. This expansion triggered legal action that the property owner ultimately settled with the State of Colorado and the EPA, but not with Boulder County.
2. CDOT has verified more than 2X of heavy truck traffic on the highways since the closure of Dowe Flats, levels of heavy highway truck activity never before experienced.
3. As documented by the property owner in 2003 and 2023, reclamation and demolition plans submitted to DRMS (forwarded below and attached) show a clear enlargement of accessory structure(s) on the property over the past 20 years. You also have photographic evidence of this enlargement in hand as well.

Given the above facts, the law is very clear. The nonconforming status should be terminated in accordance with section 4-1000 of the Boulder County Land Use Code.

While it's in the best interests of the property owner to attempt to stall, delay, and request extensions, per the Land Use Code, nonconformity in Boulder County is to be eliminated as "speedily as justice will permit." , Allowing the zoning investigation to prolong and extend unnecessarily is an injustice to other residents of Boulder County.

As always, we are ready and able to provide additional research on any data that has been provided by the property owner if needed - we have resources at our disposal willing to assist to restore justice as speedily as possible.

Thank you for your continued attention to this very important matter. I can be reached at 303.717.0414 if you'd like to discuss.

Happy Holidays,

Sincerely,
Bart Lorang
Good Neighbors of Lyons

----- Forwarded message -----

From: **Bart Lorang** <lorangb@gmail.com>

Date: Tue, Sep 19, 2023 at 7:54 AM

Subject: Structural Enlargement at Lyons Cement Facility

To: Case, Dale <dcase@bouldercounty.gov>

Cc: Sarah Lorang <lorang.sarah@gmail.com>

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2 attachments



2003 - Demolition and Reclamation - 2003-04-23_REVISION - M1977208.pdf
987K



2023 - Demolition and Reclamation - Aug 2023 - M1977208.pdf
2610K

